

attorney's fees and costs unjust." (Code Civ. Proc., § 405.38 (Deering).) "When a lis pendens is withdrawn while a motion to expunge is pending, a moving party is not automatically entitled to attorney fees, nor automatically denied attorney fees, under CCP § 405.38. Instead, based on the practical approach to the award of attorney fees, the trial court has the discretion to award attorney fees based on a determination of which party would have prevailed on the motion, and whether the lis pendens claimant acted with substantial justification in withdrawing the lis pendens, or whether, in light of all of the circumstances, the imposition of fees would otherwise be unjust." (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010.)

Defendants Meet and Confer Efforts

Defendants contend that they engaged in multiple communications with Plaintiffs' counsel before filing their Demurrer and related pleadings and that this clarification constitutes new and different facts. (Motion at p. 3: 12-14.)

Defendants took the Court's analysis out of context. The Court took note of Defendants' meet and confer efforts for the Demurrer, but Defendants artfully omit any meet and confer process for the Motion to Expunge Lis Pendens. The previous ruling simply notes that Defendants did not meet and confer, but Plaintiffs' counsel advised Defendants prior to filing their Opposition that the Motion was deficient and if it was not withdrawn and they were forced to file an opposition, they would be seeking their attorney's fees. (RJN Ex. 3 [citing RJN Ex. 2].) The Court is aware of both Parties' meet and confer efforts on the Demurrer and the Motion to Expunge Lis Pendens, and any of the meet and confer efforts discussed previously does not constitute new or different facts, law or circumstances. It is therefore not proper grounds to seek reconsideration.

Defendants' Substantial Justification Argument

Defendants argue that they acted with substantial justification because their motion relied on recorded public documents and Plaintiffs presented no admissible evidence in their opposition papers to Defendants' Motion to Expunge Lis Pendens. (See Motion at p. 2: 6-9; Robert Frank Yee Decl. ¶ 2.) The Court finds neither point persuasive.

First, Plaintiffs did present admissible evidence in the form references to its verified Complaint. Notably, "a plaintiff may rely on a verified complaint to oppose a motion to expunge a lis pendens." (*Coppinger v. Superior Court* (1982) 134 Cal.App.3d 883 [holding it would be unfair to hold Plaintiff to a higher standard, especially before discovery has begun].)

Second, although Defendants contend that they did rely on recorded public documents, giving them a reasonable basis to file the Motion to Expunge Lis Pendens, they did not once in their Motion explain Plaintiffs' allegations of the checks for \$619,004.83 along with a subsequent payment for \$5,203.03 that bounced on May 5, 2025. (Complaint ¶ 19.) Although Defendants argue substantial justification due to relying on recorded public documents the absence of explanation of the rescission of the reconveyance, Exhibit J to their RJN in Support of their Motion to Expunge Lis Pendens, is deafening. (Defendants' RJN ISO Motion to Expunge Lis Pendens ¶10.)

Conclusion

Based on the above, **Defendants' Motion for Reconsideration is denied.**

10. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

11. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
*HEARING ON MOTION IN RE: STRIKE
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

12. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: Tyisha Paulk
***TENTATIVE RULING**

DENIED. Defendant was advised by Minute Order issued by this Court on 11/14/25 that the same Motion to Set Aside Default presently before the Court required proof of service pursuant to CCP 1010 and CRC 3.111. The matter was continued to this present date to allow her to effect service on Plaintiff. She has once again failed to do so.

13. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
*HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL
FILED BY: Troy Martinez, et al
TENTATIVE RULING:

The motion to dismiss, filed by defendants Troy Martinez and Normandie & Slauson, LLC is **granted**. Defendants shall prepare and circulate a proposed form of judgment, separate from any order on this motion, for submission to the Court.

Plaintiff Debra Walker filed this suit against defendants on December 11, 2019. The Court docket reflects multiple occasions on which counsel for both sides failed to appear or other delays occurred. In June of 2024 at a settlement conference with Judge Melissa O'Connell, parties represented that they had reached a settlement. The court minutes show no terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally